

CHICKASAW TRIBAL LEGISLATURE

**Permanent Resolution Number 23-007
Amendments to Title 5, Chapter 1, Article C, Section 5-103.18
of the Chickasaw Nation Code
(Prisoner Transport Fees)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously adopted rules for the collection of prisoner transport fees by the Chickasaw Nation District Court, and

WHEREAS, the Chickasaw Tribal Legislature desires to amend those rules.

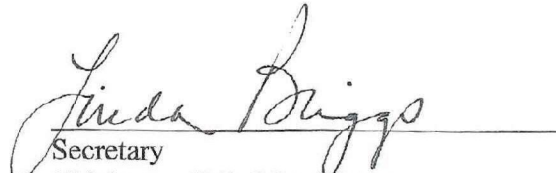
NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 5, Chapter 1, Article C, Section 5-103.18, all other parts of said Section to remain the same (additions are shown in red, deletions are stricken through):

“SECTION 5-103.18 FEES.

D. Number 9 above establishes the following fees for service of process, said amount to be paid by money order (or if a member of the Chickasaw Bar Association, by check): forty dollars (\$40) per service of process attempt and/or prisoner transport made anywhere within Pontotoc County; sixty dollars (\$60) per service of process attempt and/or prisoner transport made within the Chickasaw Nation other than Pontotoc County, and one hundred dollars (\$100) outside the Chickasaw Nation ~~Pontotoc County~~, plus mileage at the prevailing federal mileage rate. Notwithstanding the foregoing, the Prosecutor, the Division of Youth and Family and its departments therein, and indigent defense counsel shall not be charged any cost associated with service of process or prisoner transport. The Chickasaw Nation District Court is authorized to collect said fees for service of process and prisoner transports on behalf of the Chickasaw Lighthorse Police Department. Said fees, however, shall be detailed and transferred to the Chickasaw Lighthorse Police Department on a monthly basis to be used for the benefit of and to defray the costs for services performed by the Chickasaw Lighthorse Police Department. ~~The Court is authorized to pay any such transport fees, mileage and per diem costs from the Court Fund.”~~

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on July 21, 2006, by a vote of 9 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: JUL 21 2006

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Explanation: This resolution amends the fees collected by the Chickasaw District Court for prisoner transport and specifically authorizes the Court to pay such fees from the Court Fund in certain instances.

Requested By: Scott Colbert, Chairperson

Presented By: Tim Colbert, Committee Chair
Court Development Ad Hoc Committee